

mandate to correct an allegedly wrongful denial of her Medical Exemption Request, yet her verified allegations concede that Maximus is not a government administrative body responsible for the challenged decision.

A petition for writ of mandate must name the real party in interest, who thereafter has a right to notice and to be heard before a court issues a writ. (*Sonoma County Nuclear Free Zone v. Superior Court* (1987) 189 Cal.App.3d 167, 173, citations omitted.) “Real party in interest” has been generally defined as “any person or entity whose interest will be directly affected by the proceeding. (*Id.* at 173-174, citations omitted.)

The California Welfare and Institutions Code vests the Department of Health Care Services with authority over the administrative hearing process for Medi-Cal beneficiaries and the TAC concedes that “Maximus Federal Services is DHCS’s contractor and responsible for MER processing.”

Maximus correctly argues that government contractors, like Maximus, are not “real parties in interest” simply based on their being hired to manage a state-mandated program. (See *Hayes v. State Dept. of Developmental Services* (2006) 138 Cal.App.4th 1523, 1532 [where government agency holds power to set aside the decision made by their hearing officer / representative, agency could direct its representative to enter a new and different decision consistent with the trial court's ruling so a petitioner can be accorded complete relief without the contractor responsible for administering the hearing].) Maximus is not alleged to hold any particular interest or stake in the outcome of the administrative decision being reviewed.

Maximus’s demurrer to the writ is supported by petitioner’s own disaffirmance of any allegation that Maximus was the final decisionmaker. (Memorandum of Points and Authorities in Support of Opposition, 13:24-14:1.) The demurrer is further supported by the California Department of Health Care Services (apparently the correctly-named government entity), which requests that Maximus be dismissed as an improperly-named party. (Memorandum of Points and Authorities in Support of Demurrer, filed April 27, 2026, 21:16-18.)

5. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING IN RE: JOINDER IN DEMURRER INITIALLY FILED BY CO-RESPONDENT CALIFORNIA
DEPARTMENT OF HEALTH CARE SERVICES ON APRIL 27, 2026
FILED BY: CALIFORNIA DEPARTMENT OF SOCIAL SERVICES

TENTATIVE RULING:

CONTINUED. Please see Line 3.

6. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
HEARING IN RE: JOINDER IN RESPONDENTS BAAS AND CALIFORNIA DEPT. OF HEALTH CARE
SERVICES 09/21/26 DEMURRER
FILED BY: MAXIMUS, INC.

TENTATIVE RULING:

DENIED as moot. Please see Line 4.

7. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 1ST AMENDED CROSS-COMPLAINT
FILED BY: SAFFARIAN, AMIR
TENTATIVE RULING:

CONTINUED to October 5, 2026 at 9:00 a.m.

8. 9:00 AM CASE NUMBER: C25-00149
CASE NAME: AMIR SAFFARIAN VS. ALI HASSAN
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

CONTINUED to October 5, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
*HEARING ON MOTION IN RE: DISQUALIFY ATTORNEY ALLISON RENEE BRACY
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

Plaintiff Shiloh A. Parker ("Plaintiff") filed a motion for an order disqualifying Allison Renee Bracy ("Ms. Bracy") from serving as counsel for "herself, Bracy Law, and Channing Hawkins" in this lawsuit on May 11, 2026 (the "Motion to Disqualify Counsel"). The Motion to Disqualify Counsel was set for hearing on September 21, 2026. The motion is opposed.

Background

The operative complaint is Plaintiff's Third Amended Complaint filed June 24, 2026 (the "Current Operative Complaint"). The named defendants are Bracy Law PC (f/k/a BRACYHAWKINSLAW, PC), Channing Hawkins, Jendayi Saada, and Allison Renee Bracy (collectively, "defendants").

The Current Operative Complaint contains a single cause of action for slander as against all of the defendants. It is alleged that Channing Hawkins, Jendayi Saada, and Allison Renee Bracy "published false statements of fact about Plaintiff" regarding to assertions to the effect that Plaintiff stole money from her law clients. See Current Operative Complaint, ¶18.

Analysis

A court's authority to disqualify a lawyer in a pending proceeding derives from its inherent power to regulate the conduct of court officers, including attorneys, in furtherance of the sound administration of justice. *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 469. Disqualification, however, is "a drastic remedy that should be ordered only where the violation of the privilege or other misconduct has a 'substantial continuing effect on future judicial proceedings.'" *Id.* at 462, quoting *Gregori v. Bank of America* (1989) 207 Cal.App.3d 291, 309.

Ultimately, disqualification motions involve a conflict between the clients' right to counsel of their choice